

241
15/26

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Shahid Bilal Hassan

Civil Petition No. 245 of 2026

(Against the judgment dated 05.12.2025 of the Peshawar High Court, Peshawar
passed in WP No. 2250-P/2025)

Abbas Ali Shah

...Petitioner(s)

Versus

Misha Zeb Khan etc.

...Respondent(s)

For the Petitioner(s): Mr. Tariq Aziz, AOR

For the Respondent(s): Not represented

Date of Hearing: 02.04.2026

ORDER

Yahya Afridi, CJ.- This CPLA was fixed for hearing on 02.04.2026.

A written application for adjournment was moved on behalf of Mr. Iftikhar Ahmad Bashir, learned ASC for the petitioner, in the following terms:-

“2. That the undersigned counsel for the petitioner, Iftikhar Ahmad Bashir, ASC (528) shall not be able to attend due to prior personal engagement. All these Personal Engagements were already planned before the issuance of the cause list. Since he has no other attendant, therefore, leave of this court is humbly sought for permission not to appear on (01.08.2025) for the aforesaid reasons.”

2. Needless to say, a vague assertion of “prior personal engagements” cannot, by any stretch of legal reasoning, constitute a sufficient cause for adjournment. If anything, it betrays a callous disregard for professional discipline and a troubling lack of appreciation of the responsibility that accompanies the privilege of audience before this Court.

3. The learned Advocate-on-Record, being present in Court, was therefore rightly put on notice to argue the matter and did, in fact, advance submissions on behalf of the petitioner. However, after due consideration of the submissions so advanced, no grounds warranting the interference of this Court were found, and accordingly the present CPLA stands dismissed. The present situation, however, presents an appropriate occasion for this Court to set the record straight and to issue a clear corrective with respect to the culture of casual adjournments that has regrettably taken root, despite express rules and repeated warnings.

Legal Framework Governing Adjournments:

4. Under the Supreme Court Rules, 2025 (the “**Supreme Court Rules**”), two provisions in particular warrant attention for the purposes of the present matter: Order XX, Rule 2, and Order XXX, Part A, Rule 3. These provisions respectively govern (i) the procedure for seeking adjournment, and (ii) the consequences where adjournment is sought without sufficient cause.

5. Order XX, Rule 2 of the Supreme Court Rules expressly provides that:

Adjournment of cases of all kinds for hearing shall only be granted on proper application filed by Advocate-on-Record except where it is sought by a party conducting his case in person.

Thus, the procedural mechanism for seeking adjournment requires that the application be moved through the learned Advocate-on-Record (“**AoR**”) appointed in the matter. This requirement reflects the central role of the AoR in the conduct of proceedings before this Court and the attendant responsibility to ensure that matters fixed for hearing are effectively

prosecuted without disruption caused by the absence, convenience, or scheduling preferences of individual counsel. The framework is put in place to ensure that proceedings before this Court are not stalled on grounds unconnected with any legal or unavoidable impediment.

6. Further, Order XXX, Part A, Rule 3 of the Supreme Court Rules provides:

Where it appears to the Court that an Advocate or a party seeks adjournment for which sufficient cause is not shown, the Court may impose compensatory costs on the Advocate or, as the case may be, the party seeking such adjournment. Costs may also be imposed on a party who files false or vexatious appeal or other proceedings and thereby wastes the time of the Court.

The import of the above provision is clear. It is intended to discourage the routine or unjustified seeking of adjournments by attaching consequences to such conduct. Requests for adjournment that are not founded upon sufficient cause are not to be treated as routine procedural indulgences, but as matters engaging disciplinary and penal consequences, so as to preserve procedural discipline and respect for judicial time.

7. In furtherance of the aforesaid provisions of the Supreme Court Rules, the Supreme Court of Pakistan issues procedural directions for learned counsel through its weekly public cause list, which expressly provides:

i) No application for adjournment through fax/email will be placed before the Court. If any counsel is unable to appear for any reason, the Advocate-on-Record will be required to argue the case.

(ii) No adjournment on any ground will be granted.

These directions serve to reiterate that the unavailability or inability of counsel to appear does not constitute sufficient cause for adjournment, as the learned AoR is expected to argue the matter in such circumstances. They further clarify that no adjournment shall be granted to counsel on any ground whatsoever, as, in consonance with the Order XX, Rule 2 of the Supreme Court Rules, the correct mechanism of filing for adjournment is a written application filed by the learned AoR personally.

8. Taken together, the above provisions and directions leave no ambiguity as to the legal position governing adjournments before this Court. The procedural framework mandates that adjournments may only be sought through a properly instituted application by the learned AoR, and even then only upon demonstration of sufficient cause. Simultaneously, it is abundantly clear that the unavailability or convenience of individual counsel does not, in itself, constitute a valid ground for adjournment, as the responsibility to proceed with the matter rests with the AoR. The overall scheme is, therefore, reflective of the fact that adjournments remain strictly exceptional.

9. Notwithstanding the legal and institutional position set out above, this Court continues to exercise its discretion where genuine exigencies are demonstrated and sufficient cause is shown in accordance with the applicable Supreme Court Rules, by duly considering and, where warranted, allowing requests for adjournment in the interest of fairness and due process. This, however, cannot be construed as diluting the strictness of the governing framework, nor as justifying the routine invocation of adjournments as a matter of convenience.

Statistics Regarding Adjournments:

10. Despite the aforementioned legal framework, repeated reminders, and the settled position that adjournments are granted only upon sufficient cause, the record before the Court demonstrates that these principles are not being followed in practice. We note, with immense disappointment, that the mandate governing adjournments is being increasingly disregarded by counsel.

11. Official data generated by the IT-Directorate of this Court reveals a highly concerning pattern. Between January 2026 and March 2026, a total of **653** adjournment were sought by advocates.

12. More concerning is the fact that an overwhelming majority of adjournments are sought despite the Court being assembled and matters being otherwise ready for hearing, thereby rendering substantial judicial time unproductive. This data clearly reflects a pattern of casual, convenience-based requests made in disregard of binding rules and express cause-list warnings, which is not expected from advocates performing their duties at the apex level of our judicial system.

Practical Impact of Adjournments:

13. We state in the clearest possible terms that such a practice is wholly unacceptable. Lawyers, not just before this Court but across Pakistan, must realise the direct correlation between adjournments and the burden they place upon the public exchequer.

The justice system of the country is sustained entirely through public funds, allocated to the Courts solely for the administration of effective and timely justice. Accordingly, each matter fixed for hearing necessarily sets

in motion the expenditure of public resources. Judicial time, court staff, courtroom infrastructure, security arrangements, and administrative support are all engaged the moment a cause list is issued and a matter is placed for hearing. When such a matter is then not taken on account of an avoidable adjournment, that entire institutional deployment stands expended without the discharge of its adjudicatory function in that cause, and in essence, is wasted.

Again, it must be remembered that the consequence of this wastage is ultimately borne by the public purse. It is neither theoretical nor capable of re-adjustment within the system. In fact, in the most practical terms, judicial time and institutional resources, once expended, are irretrievable, as they cannot be reclaimed or diverted to other pending matters already competing for space within a finite judicial calendar.

14. Moreover, unnecessary adjournments strike at the very heart of the access to justice. For litigants, particularly those of limited means, repeated adjournments translate into increased expense and, in effect, a denial of timely justice. This, in turn, erodes public confidence in the judicial system and runs contrary to the institutional efforts of this Court to ensure expeditious disposal of cases. It thus bears emphasis that the right to fair trial and due process under Article 10-A of the Constitution, as well as the larger constitutional promise of effective judicial remedies, cannot coexist with a culture of routine adjournments sought merely for convenience.

15. While this Court has shown and will continue to show indulgence where genuine exigencies are shown, such indulgence cannot be mistaken for acquiescence. Adjournments remain exceptions granted at the discretion of the Court, not entitlements. The persistent misuse of requests for adjournment, despite clear rules and warnings, is equivalent to

impeding the duty of this Court to fairly and effectively dispense justice, and shall be treated accordingly.

16. Accordingly, the Bar is once again put on clear notice that adjournments sought without strict compliance with the legal framework and without demonstrable sufficient cause shall invite appropriate consequences, including imposition of compensatory costs in terms of the Supreme Court Rules.

Islamabad, the

2nd of April, 2026

Not approved for reporting